

STATE OF NORTH CAROLINA

COUNTY OF VANCE

The Vance County Board of Commissioners met in regular session on Monday, November 1, 2021 at 6:00 p.m. in the commissioners' conference room, Vance County Administration Building, 122 Young Street, Henderson, NC. Those commissioners present were as follows: Chairman R. Dan Brummitt, Vice-Chairman Leo Kelly, Jr., Commissioners Carolyn Faines, Yolanda J. Feimster, Thomas S. Hester, Jr., Archie B. Taylor, Jr., and Gordon Wilder.

Absent: None.

Also present were County Manager Jordan McMillen, Finance Director Katherine Bigelow, County Attorney Jonathan S. Care, and Clerk to the Board Kelly H. Grissom.

Rev. George Loveland, First United Methodist Church, gave the invocation.

Public comments were heard first. Mr. Ron Regular spoke about a WRAL report regarding the Vance County's Sheriff's Office and the three employees who were indicted. He also stated that he would like to see high speed internet available throughout the county.

Mr. John Miles expressed his concerns with the Sheriff's Office continuing to pay three employees who are on administrative leave due to being indicted by a grand jury. He asked the board how long are they going to allow this to continue.

Mr. Frankie Nobles, Vance County Employee Engagement Team Chair, appeared before the board to recognize the new employee of the month. He noted that employees are nominated by their peers, and this month's recognition goes to Bailiff William Coker with the Vance County Sheriff's Office. His peers noted that he is a team player, collaborates to achieve a common goal, is extremely motivated, and is always on the job early to ensure things will go smoothly for court. Mr. Coker will receive a \$100 gift card and a designated parking space for the month. Mr. Coker was presented with a certificate of appreciation and the board congratulated him on receiving this recognition.

As advertised, a public hearing was held to gain citizen input on a rezoning request for two parcels located at the corner of Ridgeway Drewry Road and Jacksontown Road. C3 Design and Engineering, PLLC is the applicant. Planning Director Keith Callahan stated that the request is to amend the zoning map and to rezone the two parcels, 0587 04004 (2.62 acres); and 0587 04003 (.47 acre) from R30 (Residential Low Density) to HC (Highway Commercial). Mr. Callahan stated

that the Planning Board recommended approval of the rezoning on October 14, 2021 by a unanimous vote.

Mr. Chad Abbott with C3 Design and Engineering spoke in support of the rezoning. Mr. Gary Fletcher stated that he would like to know what is planned for the parcels. Mr. Abbott responded that the rezoning request is for a boat/RV storage facility.

As there was no one else who wished to speak on this matter, Chairman Dan Brummitt declared the public hearing closed.

Motion was made by Commissioner Thomas S. Hester, Jr. to approve the rezoning request on the basis that it is reasonable and consistent with the county's land use plan by promoting the county's public interest and encouraging commercial development in an area that includes other existing commercial uses. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

As advertised, a public hearing was held to receive public input on a proposed economic development incentive expenditure to be considered for the expansion of a local company. In return for the commitments of expanding the warehouse and office buildings, expanding production equipment, creating 25 new local qualified jobs, and retaining at least 250 existing jobs in Vance County, it is proposed that Vance County will provide an economic development grant to M.R. Williams, Inc. in the amount of \$126,821 over the next five years.

As there was no one from the public who wished to speak on this matter, Chairman Dan Brummitt declared the public hearing closed.

Motion was made by Commissioner Gordon Wilder to approve the economic development incentive agreement with M.R. Williams, Inc. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

Mr. Chase Wingate with Open Broadband was next on the agenda to provide the quarterly project report for the county's broadband initiative as well as an activity update. He explained the trouble they have had with delays in receiving equipment and stated that it was slowly improving. After lengthy discussion, Chairman Brummitt expressed his concerns with agreement milestones not being met. Mr. Wingate responded that he anticipates a great deal of progress to be made soon.

Tax Administrator Porcha Brooks was next on the agenda and presented the following untimely exemption applications for approval:

Untimely Exemptions

Name	Exemption Requested	Tax Administrator’s Recommendation
Wilkie M. Cheek, Sr. 479 Billy Burwell Road Parcel 0302B01007	Elderly Exemption	Approve Application
Graham T. Holland II 406 Parham Road Parcel 0037A07002	Disabled Veteran Exemption	Approve Application
Gladys W. Parham 509 E. Montgomery Street Parcel 0076 04011	Elderly Exemption	Approve Application
Kerr Area Transportation Authority 1575 Ross Mill Road Parcel 0210 05001	Other Charitable, Educational, etc.	Approve Application
Oasis of Home Ministries of Henderson 2656 US 1/158 Hwy North Parcel 0030 01016	Other Charitable, Educational, etc.	Approve Application
Turning Point Community Development 2495 US 1/158 Hwy North Parcel 0030 01015	Other Charitable, Educational, etc.	Approve Application

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Carolyn Faines, vote unanimous, to approve the elderly and disabled veteran exemptions as requested.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to approve the exemptions for Kerr Area Transportation Authority, Oasis of Home Ministries of Henderson, and Turning Point Community Development.

Water District Board

The September 2021 monthly operations report was presented to the board for information.

Committee Reports and Recommendations

Properties Committee – Eaton Johnson Fire Alarm Duct Detector Change Order. County Manager Jordan McMillen stated that the committee (Brummitt, Kelly & Wilder) met Friday, October 8 at Eaton Johnson to discuss a change order to add duct smoke detectors to each of the 32 air handling units. The detectors are essential in shutting the units off in the event of fire and are required per the fire code to ensure adequate fire protection. The committee discussed whether the detectors should have been included in the original design and determined the installation of new fire panels and components by the fire alarm company triggered the requirement for adding the detectors. The fire marshal is requiring installation of the duct detectors prior to receiving a Certificate of Occupancy for the building. The committee recommended approval of the change order. Following the meeting, the committee toured the building and construction progress on site.

Motion was made by Commissioner Thomas S. Hester, Jr. to approve the change order at Eaton Johnson adding duct detectors for the fire alarm system totaling \$18,836. This motion was seconded by Commissioner Carolyn Faines and unanimously approved.

Commissioner Thomas S. Hester, Jr. stated that he wants to see a fence put around the retention pond. Mr. McMillen responded that this is being planned.

Properties Committee – Selection of Contractor for Tax Revaluation. Mr. McMillen stated that the committee met Monday, October 25 with the Tax Administrator to review proposals from appraisal companies to complete the 2024 revaluation. The revaluation reappraises all real property in the county at its current value and would be implemented January 1, 2024 with a new tax rate being adopted with the FY24-25 budget. The proposals include two options – a walk around revaluation and a full measure and list. The NC Department of Revenue is recommending a full measure and list revaluation due to the county's low sales assessment ratio and associated data reviews completed by Department. The committee discussed the requirement for completing a revaluation every eight years with several counties moving to every four years. The committee also discussed the disparity between current tax values and sales prices which should indicate a significant reduction in the tax rate post revaluation. The committee was made aware the county sets aside funds each year for the revaluation with a current balance of \$432,000 in the revaluation fund. The committee recommended proceeding with Vincent Valuations for a full measure and list revaluation and recommended moving \$296,000 from fund balance to the revaluation fund to cover the balance of the cost.

Motion was made by Commissioner Carolyn Faines to approve the selection of Vincent Valuations for the 2024 revaluation and authorize staff to finalize a contract totaling \$728,000 for a full measure and list revaluation. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

Properties Committee – Surplus Property Offer from Vance County Schools. Mr. McMillen stated that the committee reviewed a letter from the school board seeking to surplus Western Vance School and offering the property and the old two story Eaton Johnson building to the County. Both properties are no longer needed or necessary for public school purposes, and in accordance with NC General Statute 115C-518, the school system is required to offer the properties to the county before attempting to sell the properties. The committee discussed the possibility of utilizing the Western Vance property for a rural park in the future, but did not see an

immediate need for the county to take ownership of either property offered. The committee recommended providing a written response declining interest in taking ownership of either property.

Motion was made by Commissioner Gordon Wilder to direct staff to provide a written response to the Vance County School Board declining interest in taking ownership of Western Vance School and the Old Eaton Johnson property. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

Finance Director’s Report

Education Lottery Fund Applications. Finance Director Katherine Bigelow stated that a joint application filed by the county commissioners and the board of education must be submitted to the state in order to draw down available North Carolina Education Lottery funds from the Public School Building Capital Fund. The county has budgeted to use lottery funds to pay the debt service for the 2010 QSCB and 2013 QZAB projects. The board of education approved the applications at its October 11, 2021 meeting for \$384,775.00. Recommendation: Approve the applications to draw down lottery funds to be used for debt service payments on existing school facilities debt.

Motion was made by Commissioner Gordon Wilder to approve the applications to draw down lottery funds to be used for debt service payments on existing school facilities debt. This motion was seconded by Commissioner Leo Kelly, Jr. and unanimously approved.

American Rescue Plan Act (ARPA). Ms. Bigelow noted that the Treasury has issued an interim final rule and the chart below lists out the seven categories that are ARPA allowable spending. As of September 30, Vance County has obligated \$2,250,000. She requested approval to obligate no more than \$350,000 for jail cell doors (with slots), lock renovations, and upgrades.

American Rescue Plan Act (ARPA)		Potential Spending
1. Public Health		\$ 350,000.00
2. Negative Economic Impacts		
3. Expenditure Category: Services to Disproportionately Impacted Communities		
4. Expenditure Category: Premium Pay		
5. Expenditure Category: Infrastructure		\$ 2,000,000.00
6. Expenditure Category: Revenue Replacement		
7. Expenditure Category: Administrative/Other		\$ 250,000.00
TOTAL:		\$ 2,600,000.00
TOTAL VC ALLOCATION		\$ 8,650,402.00

Received to Date: \$4,325,201

Motion was made by Commissioner Carolyn Faines to approve obligating \$350,000 in ARPA funding for jail cell doors, lock renovation and upgrade as presented. This motion was seconded by Commissioner Leo Kelly, Jr. and unanimously approved.

County Manager's Report

Head Start - Eaton Johnson Wing Lease. County Manager Jordan McMillen stated that the lease agreement with Franklin, Vance, Warren Opportunity Head Start program has been finalized and was reviewed previously by the properties committee. The lease would provide 8,900 square feet (wing 2) to the Head Start program at a base rate of \$10 per square foot for five years followed by a five year renewal. The lease includes a commitment by the county to renovate the space to include the following items: replacement of carpet in office C-111, one-time stripping and waxing of floors throughout, removal of lockers, removal of wall between room C113 and C115, painting of interior, replacement of ceiling tiles as needed, installation of chain link fence between wing one and wing two, and adding exterior doors into each classroom. Franklin, Vance, Warren would provide reimbursement to the county for the renovation work over the first five years of the agreement and would install playground equipment at their expense. The lease commences May 1, 2022. The county's architect (Oakley, Collier) will be providing the necessary design and bidding assistance for the renovation work. Recommendation: Approve the lease agreement with Franklin-Vance-Warren Opportunity, Inc. for wing two at Eaton Johnson to be used for their Head Start program, subject to final attorney review.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Leo Kelly, Jr., vote unanimous, to approve the lease agreement with Franklin-Vance-Warren Opportunity, Inc. for wing two at Eaton Johnson to be used for their Head Start program, subject to final attorney review.

Vaya Health Transition and Regional Board Appointments. Mr. McMillen advised that Vaya Health anticipates finalizing their consolidation with Cardinal Innovations January 1, 2022. Vaya anticipates approval from the DHHS Secretary of their alternative board structure in the coming days. A total of 31 counties are in the Vaya catchment area and their intent is to create four regions of counties. Vance County would be in region four with Granville, Franklin, Person, Caswell, Alamance, Chatham, and Stokes County. Maps of Vaya counties and region designations were provided to the board. Mr. McMillen stated that each of the counties are to appoint two members to the regional community board and each of the four regional boards will appoint two

members to the newly consolidated and reconstituted Vaya Health Board. Additionally, four members will be appointed to the Vaya Board by the Consumer and Family Advisory Committee (CFAC), one will be appointed by the DHHS Secretary, and up to eight at-large seats will be appointed by the current Vaya Board. Vaya is aiming to have the board in place by January 1st. Vance County will need to appoint two members to the regional community board at the December board meeting. One member must be a commissioner and the second member can be a commissioner, DSS Director, Health Director, Law Enforcement representative, or County Manager.

Chairman Dan Brummitt expressed his interest in serving in this capacity.

County Attorney's Report

REO Properties – Bid Acceptance Resolutions. County Attorney Jonathan S. Care noted that during previous meetings, the board of commissioners approved the public sale process for Hwy 39 North Lot, Townsville – Parcel 0325 04005; Gun Club Road Lot – Parcel 0404 03008; and W. Main Street Lot, Kittrell – Parcel 0477 02006. He stated that the properties have been through the upset bid process and the board is now free to sell the properties or reject the offers.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Carolyn Faines, vote unanimous, to approve the following resolutions accepting the bids for Hwy 39 North Lot, Townsville – Parcel 0325 04005; Gun Club Road Lot – Parcel 0404 03008; and W. Main Street Lot, Kittrell – Parcel 0477 02006.

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RESOLUTION ACCEPTING BID FOR COUNTY OWNED REAL PROPERTY

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$1,332.00** from **Robert C. Smith and Gwenda Smith** for the purchase and sale of County owned real property, which is more particularly described below:

Hwy 39 North Lot, Townsville, North Carolina 27584, Vance County Tax Department Parcel Number 0325 04005.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **October 9, 2021** stating that said offer from **Robert C. Smith and Gwenda Smith** in the amount of **\$1,332.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Robert C. Smith and Gwenda Smith** in the amount of **\$1,332.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached

hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 1st day of November, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer in the amount of **\$1,090.00** from **Rhonda Yvette Taylor** for the purchase and sale of County owned real property, which is more particularly described below:

Gun Club Road Lot, Henderson, North Carolina 27537, Vance County Tax Department Parcel Number 0404 03008.

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **October 9, 2021** stating that said offer from **Rhonda Yvette Taylor** in the amount of **\$1,090.00** had been received and that any person wishing to submit an upset bid should do so within 10 days, and

WHEREAS, no upset bids were received within the statutorily prescribed time period.

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Rhonda Yvette Taylor** in the amount of **\$1,090.00** subject to the terms and conditions contained in the submitted upset Offer to Purchase Contract, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 1st day of November, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION ACCEPTING BID FOR
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

W. Main Street, Kittrell, North Carolina, Vance County Tax Department Parcel Number 0477 02006.

WHEREAS, pursuant to NCGS 160A-269 and the Resolution Authorizing Upset Bid Process for Sale of Real Property adopted by the Vance County Board of Commissioners on October 4, 2021, a notice was published in the *Daily Dispatch* on **October 9, 2021**, stating that said offer by **Rhonda Yvette Taylor** in the amount of **\$1,375.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, an upset bid was received by **Josetter Royster**; and

WHEREAS, pursuant to NCGS 160A-269, a notice was republished in the *Daily Dispatch* on **October 14, 2021**, stating that said offer by **Josetter Royster** in the amount of **\$2,125.00** had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

THEREFORE, BE IT RESOLVED by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Josetter Royster** in the amount of **\$2,125.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

Adopted this the 1st day of November, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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REO Properties – New Offers. Attorney Care stated that new offers have been received for real properties located at 531 Highland Avenue – Parcel 0078 02018; 200 Mindy Lane – Parcel 0407 01021M; and E. Chavis Lane Lot, Kittrell – Parcel 0480 01010A. Attorney Care stated that the board needs to vote on whether or not to proceed with the sale by advertising for upset bids and recommended approval of the resolutions to begin the upset bid process for the properties. It was noted that 531 Highland Avenue is jointly owned with the City of Henderson, so any action will need to be contingent upon the city taking similar action.

Motion was made by Commissioner Thomas S. Hester, Jr. to approve the upset bid process for real property located at 531 Highland Avenue – Parcel 0078 02018; 200 Mindy Lane – Parcel 0407 01021M; and E. Chavis Lane Lot, Kittrell – Parcel 0480 01010A, contingent upon the City taking similar action on the jointly owned property. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

[illegible]

WHEREAS, Vance County owns certain real property with an address of **531 Highland Avenue, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0078 02018**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$2,250.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Herman A. Davis, Jr.** and

WHEREAS, Herman A. Davis, Jr. has paid the required deposit in the amount of **\$2,250.00** with his offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 1st day of November, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
200 Mindy Lane, Henderson, NC 27537**

WHEREAS, Vance County owns certain real property with an address of **200 Mindy Lane, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0407 01021M**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$10,000.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **Grethel Mendoza and Edward Mendoza**; and

WHEREAS, **Grethel Mendoza and Edward Mendoza** have paid the required deposit in the amount of **\$750.00** with their offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or

certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.

7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 1st day of November, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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**RESOLUTION AUTHORIZING UPSET BID PROCESS
FOR SALE OF REAL PROPERTY
E. Chavis Lane, Kittrell, NC 27544**

WHEREAS, Vance County owns certain real property with an address of **E. Chavis Lane, Kittrell, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Number **0480 01010A**; and

WHEREAS, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and

WHEREAS, the County has received an offer to purchase the real property described herein above in the amount of **\$1,040.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by **NC, Vance 1960718443 – Trust (Josh Speiss as Agent)**; and

WHEREAS, **NC, Vance 1960718443 – Trust (Josh Speiss as Agent)** has paid the required deposit in the amount of **\$750.00** with the offer.

THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.

3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying bid is received, a new notice of upset bid shall be published and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at a closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.
8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**
9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

This the 1st day of November, 2021.

R. Dan Brummitt (signed)
R. Dan Brummitt, Chairman
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)
Kelly H. Grissom, Clerk to the Board

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Property Tax Settlement. Attorney Care presented a property tax settlement with Prestigious Housing, Inc. after going through the Property Tax Commission. This is based on the 2014 tax year. The settlement includes reducing the property value of Parcel 0216 03008 from \$1,727,269 to \$815,451 and Parcel 0216 03015 from \$108,474 to \$61,170. These amounts have been agreed upon by the property owner.

Motion was made by Commissioner Thomas S. Hester, Jr. to approve the revised tax value and settlement for tax parcel 0216 03008 and parcel 0216 03015. This motion was seconded by Commissioner Leo Kelly, Jr. and unanimously approved.

Redistricting Update. Attorney Care noted that the county held three public listening sessions during the month of September and October which included several commissioners, representation from the school board, and approximately ten citizens at each meeting. Based upon input gathered, three options and maps (A-1, B-1 and C) were produced and released on October 20 showing various scenarios for bringing electoral districts into compliance. All background information, maps and reference data have been available on the county webpage throughout the entire process. Session Law 2021-56 requires the county to finalize electoral district changes by November 17, 2021. Attorney Care stated that in order to adopt the final districts we will need to prepare a rather lengthy description for each district which includes listing all of the census blocks within in each district. A consensus on the new districts is needed so that the correct descriptions can be prepared prior to adoption at a special called meeting later in November. He recommended Proposed Plan C based upon the concise, contiguous nature of the districts.

After discussion, the board decided, by consensus, to move forward with Proposed Plan C. A special meeting will be scheduled on or before November 17 for final approval.

Consent Agenda

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Gordon Wilder, vote unanimous, to approve the following consent agenda items as presented: Budget Amendments #6 and #7, September 2021 Tax Refunds and Releases, departmental monthly reports, and the minutes of the October 4, 2021 regular meeting.

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**Budget Amendment #6
FY 2021-2022
Tax Revaluation**

Revenue Amendment Request	Account Number	Revenue Increase (Decrease)
Revaluation Fund – Transfer from General Fund	40-397-439710	296,000
Total Revenue Increase (Decrease)		\$ 296,000

Expenditure Amendment Request	Account Number	Expense Increase (Decrease)
Octennial Reserve	40-690-500344	296,000
Total		\$ 296,000

Purpose: Transfer from General Fund to pay for full measure and list revaluation as recommended by properties committee.

1. 2. 3. 4. 5. 6. 7. 8. 9. 10. 11. 12. 13. 14. 15. 16. 17. 18. 19. 20. 21. 22. 23. 24. 25. 26. 27. 28. 29. 30. 31. 32. 33. 34. 35. 36. 37. 38. 39. 40. 41. 42. 43. 44. 45. 46. 47. 48. 49. 50. 51. 52. 53. 54. 55. 56. 57. 58. 59. 60. 61. 62. 63. 64. 65. 66. 67. 68. 69. 70. 71. 72. 73. 74. 75. 76. 77. 78. 79. 80. 81. 82. 83. 84. 85. 86. 87. 88. 89. 90. 91. 92. 93. 94. 95. 96. 97. 98. 99. 100. 101. 102. 103. 104. 105. 106. 107. 108. 109. 110. 111. 112. 113. 114. 115. 116. 117. 118. 119. 120. 121. 122. 123. 124. 125. 126. 127. 128. 129. 130. 131. 132. 133. 134. 135. 136. 137. 138. 139. 140. 141. 142. 143. 144. 145. 146. 147. 148. 149. 150. 151. 152. 153. 154. 155. 156. 157. 158. 159. 160. 161. 162. 163. 164. 165. 166. 167. 168. 169. 170. 171. 172. 173. 174. 175. 176. 177. 178. 179. 180. 181. 182. 183. 184. 185. 186. 187. 188. 189. 190. 191. 192. 193. 194. 195. 196. 197. 198. 199. 200. 201. 202. 203. 204. 205. 206. 207. 208. 209. 210. 211. 212. 213. 214. 215. 216. 217. 218. 219. 220. 221. 222. 223. 224. 225. 226. 227. 228. 229. 230. 231. 232. 233. 234. 235. 236. 237. 238. 239. 240. 241. 242. 243. 244. 245. 246. 247. 248. 249. 250. 251. 252. 253. 254. 255. 256. 257. 258. 259. 260. 261. 262. 263. 264. 265. 266. 267. 268. 269. 270. 271. 272. 273. 274. 275. 276. 277. 278. 279. 280. 281. 282. 283. 284. 285. 286. 287. 288. 289. 290. 291. 292. 293. 294. 295. 296. 297. 298. 299. 300. 301. 302. 303. 304. 305. 306. 307. 308. 309. 310. 311. 312. 313. 314. 315. 316. 317. 318. 319. 320. 321. 322. 323. 324. 325. 326. 327. 328. 329. 330. 331. 332. 333. 334. 335. 336. 337. 338. 339. 340. 341. 342. 343. 344. 345. 346. 347. 348. 349. 350. 351. 352. 353. 354. 355. 356. 357. 358. 359. 360. 361. 362. 363. 364. 365. 366. 367. 368. 369. 370. 371. 372. 373. 374. 375. 376. 377. 378. 379. 380. 381. 382. 383. 384. 385. 386. 387. 388. 389. 390. 391. 392. 393. 394. 395. 396. 397. 398. 399. 400. 401. 402. 403. 404. 405. 406. 407. 408. 409. 410. 411. 412. 413. 414. 415. 416. 417. 418. 419. 420. 421. 422. 423. 424. 425. 426. 427. 428. 429. 430. 431. 432. 433. 434. 435. 436. 437. 438. 439. 440. 441. 442. 443. 444. 445. 446. 447. 448. 449. 450. 451. 452. 453. 454. 455. 456. 457. 458. 459. 460. 461. 462. 463. 464. 465. 466. 467. 468. 469. 470. 471. 472. 473. 474. 475. 476. 477. 478. 479. 480. 481. 482. 483. 484. 485. 486. 487. 488. 489. 490. 491. 492. 493. 494. 495. 496. 497. 498. 499. 500. 501. 502. 503. 504. 505. 506. 507. 508. 509. 510. 511. 512. 513. 514. 515. 516. 517. 518. 519. 520. 521. 522. 523. 524. 525. 526. 527. 528. 529. 530. 531. 532. 533. 534. 535. 536. 537. 538. 539. 540. 541. 542. 543. 544. 545. 546. 547. 548. 549. 550. 551. 552. 553. 554. 555. 556. 557. 558. 559. 560. 561. 562. 563. 564. 565. 566. 567. 568. 569. 570. 571. 572. 573. 574. 575. 576. 577. 578. 579. 580. 581. 582. 583. 584. 585. 586. 587. 588. 589. 590. 591. 592. 593. 594. 595. 596. 597. 598. 599. 600. 601. 602. 603. 604. 605. 606. 607. 608. 609. 610. 611. 612. 613. 614. 615. 616. 617. 618. 619. 620. 621. 622. 623. 624. 625. 626. 627. 628. 629. 630. 631. 632. 633. 634. 635. 636. 637. 638. 639. 640. 641. 642. 643. 644. 645. 646. 647. 648. 649. 650. 651. 652. 653. 654. 655. 656. 657. 658. 659. 660. 661. 662. 663. 664. 665. 666. 667. 668. 669. 670. 671. 672. 673. 674. 675. 676. 677. 678. 679. 680. 681. 682. 683. 684. 685. 686. 687. 688. 689. 690. 691. 692. 693. 694. 695. 696. 697. 698. 699. 700. 701. 702. 703. 704. 705. 706. 707. 708. 709. 710. 711. 712. 713. 714. 715. 716. 717. 718. 719. 720. 721. 722. 723. 724. 725. 726. 727. 728. 729. 730. 731. 732. 733. 734. 735. 736. 737. 738. 739. 740. 741. 742. 743. 744. 745. 746. 747. 748. 749. 750. 751. 752. 753. 754. 755. 756. 757. 758. 759. 760. 761. 762. 763. 764. 765. 766. 767. 768. 769. 770. 771. 772. 773. 774. 775. 776. 777. 778. 779. 780. 781. 782. 783. 784. 785. 786. 787. 788. 789. 790. 791. 792. 793. 794. 795. 796. 797. 798. 799. 800. 801. 802. 803. 804. 805. 806. 807. 808. 809. 810. 811. 812. 813. 814. 815. 816. 817. 818. 819. 820. 821. 822. 823. 824. 825. 826. 827. 828. 829. 830. 831. 832. 833. 834. 835. 836. 837. 838. 839. 840.

| Revenue Amendment Request | Account Number | Revenue Increase (Decrease) |
|--|----------------|-----------------------------|
| Insurance Recoveries | 10-367-436702 | 15,325 |
| | | |
| Total Revenue Increase (Decrease) | | \$ 15,325 |

| Expenditure Amendment Request | Account Number | Expense Increase (Decrease) |
|--------------------------------------|-----------------------|------------------------------------|
| Capital Outlay | 10-510-500074 | 15,325 |
| Total | | \$ 15,325 |

Figure 1

| TAXPAYER NAME | TAX YR | REAL | PERSONAL | SOLID WASTE FEE | REASON |
|--------------------------------|--------|--------|----------|-----------------|------------------|
| R M B INVESTMENTS | 2020 | 0 | 288.04 | 0 | PERS PROP BILLED |
| R M B INVESTMENTS | 2020 | 0 | 25.31 | 0 | PERS PROP BILLED |
| R M B INVESTMENTS | 2020 | 0 | 8.61 | 0 | PERS PROP BILLED |
| R M B INVESTMENTS | 2020 | 0 | 1.35 | 0 | PERS PROP BILLED |
| BACKYARD BBQ LLC | 2021 | 0 | 40.87 | 0 | PERS PROP BILLED |
| BACKYARD BBQ LLC | 2021 | 0 | 0.24 | 0 | PERS PROP BILLED |
| BAILEY EDDIE | 2021 | 0 | 3.23 | 0 | PERS PROP BILLED |
| BANK OF THE WEST EQUIPMENT LEA | 2021 | 0 | 0.98 | 0 | PERS PROP BILLED |
| BATCHELOR ANNIE P | 2021 | 400.50 | 0 | 0 | CORRECT/GRANT EX |
| CANON FINANCIAL SERVICE INC | 2021 | 0 | 3.87 | 0 | PERS PROP BILLED |
| CITIZENS ASSET FINANCE INC | 2021 | 0 | 670.28 | 0 | PERS PROP BILLED |
| CITIZENS ASSET FINANCE INC | 2021 | 0 | 0.98 | 0 | PERS PROP BILLED |
| CITIZENS ASSET FINANCE INC | 2021 | 0 | 670.28 | 0 | PERS PROP BILLED |
| CLARK JOHN D | 2021 | 702.46 | 0 | 120 | REAL PROP - BILL |
| CORNERSTONE GENERAL CONTRACTOR | 2021 | 0 | 14.51 | 0 | PERS PROP BILLED |
| CYPRESS CREEK O&M LLC | 2021 | 0 | 20.35 | 0 | REMOVE LATE LIST |
| GENESIS | 2021 | 0 | 28.73 | 0 | PERS PROP BILLED |
| GENESIS | 2021 | 0 | 1.78 | 0 | PERS PROP BILLED |
| GENESIS | 2021 | 0 | 7.81 | 0 | PERS PROP BILLED |
| GENESIS | 2021 | 0 | 1.60 | 0 | PERS PROP BILLED |
| GREGORY ROBIN L | 2021 | 0 | 127.59 | 120 | PERS PROP BILLED |
| HENDERSON AND HENDERSON LLC | 2021 | 0 | 458.03 | 0 | PERS PROP BILLED |
| HENDERSON AND HENDERSON LLC | 2021 | 0 | 163.11 | 0 | PERS PROP BILLED |

Carol Terwilliger to the Vance County Tourism Development Authority to fill a vacant position.

This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

As there was no further business, at 7:55 p.m., motion was made by Commissioner Gordon Wilder, seconded by Commissioner Leo Kelly, Jr., vote unanimous, that the meeting be adjourned.

Approved and signed December 6, 2021.

Leo Kelly, Jr. (signed)
Leo Kelly, Jr., Chairman